



Banks and Gesso, LLC ✓

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July 8, 2004
VIA CERTIFIED MAIL

SR-1 ✓

RECEIVED

JUL 12 2004 ✓

Division of Minerals and Geology

Mr. Carl Mount
Division of Minerals and Geology
1313 Sherman Street, Room 215
Denver, CO 80203

Re: Request for Bond Release and Acreage Reduction
Permit #M-1977-341, Larimer County Quarry, CEMEX, Inc.

Dear Carl:

On behalf of our client, Cemex, Inc., we request a bond release and acreage reduction for at least 283.8 acres of the 288.8 acre Larimer County Quarry as described below.

Property Ownership

Property within the permit boundary is owned by:

Mr. Terry Parrish
Parrish Ranch Conservation
Partnership
15715 Parrish Road
Berthoud, CO 80513
(303) 665-3420

Poudre Valley Rural Electric
Authority
attn: Ron Carey, General Manager
PO Box 272550
Fort Collins, CO 80527-2550
(970) 226-1234

Release Request

Cemex is requesting that 283.8 acres located in the N ½, N ½ of S ½, and the SE ¼ of SW ¼ of Section 35 and W ½ of NW ¼ Section 36, Township 4 North, Range 70 West, 6th P.M., be released from the permit boundary and bonding requirements. This area constitutes the majority of the permitted area.

The remaining 5 acres, located in the SE ¼ of the NE ¼ of Section 35 and SW ¼ of the NW ¼ of Section 36, Township 4 North, Range 70 West, 6th P.M., within Pit A (and shown on the attached Site Map as a cross-hatched area) does not likely have sufficient growth at this time to allow for a total release. However, if during the Division's release inspection you feel sufficient growth has occurred, then we request a total release of the entire permitted area from further reclamation requirements and a full bond release.

Remaining Reclamation Cost Estimate

The only reclamation activity that may remain at this site is a potential reseeding of the 5 acre area within Pit A if sufficient growth has not or does not occur. The cost to reseed this area would be approximately \$2,000 (\$400 per acre x 5 acres). Therefore, we request that the bond at this site be reduced from \$28,000 to \$2,000.

As agent for Cemex, Inc., we believe that Cemex has satisfied all applicable portions of the Reclamation Plan requirements for the requested area, and is therefore eligible for this acreage reduction and bond release. Please let me know if you require additional information to approve this request. Thank you.

Sincerely,
BANKS AND GESSO, LLC

A handwritten signature in black ink, reading "Maureen Jacoby". The signature is written in a cursive, flowing style.

Maureen Jacoby
Project Manager

attachment: Site Map

cc: Mr. George Martin, Cemex, Inc.
Mr. John Lohr, Cemex, Inc.

MAP TAKEN FROM DMG FILE
PERMIT #M-1977-341

WAGONWHEEL ROAD

QUARRY ACCESS ROAD

PIT A

RECLAIMED

APPROX. 5 ACRES STILL
BEING RECLAIMED
(WAITING FOR SUFFICIENT
GROWTH)

RELOCATED
ROAD

EXISTING QUARRY
PERMIT NO. 77341

BUFFER AREA

POWER TRANSMISSION LINE

PARRISH QUARRY

12.8 ACRES

OLD
PARRISH
ROAD

SOUTHWESTERN PORTLAND CEMENT
PROPERTY LINE

SITE DESCRIPTION: SECTION 35
AND 36 IN TOWNSHIP 4 NORTH
RANGE 70 WEST. 6TH P.M.

SOUTHWESTERN PORTLAND CEMENT COMPANY	
DATE: 10/1/77	BY: [Signature]
SCALE: 1" = 40'	PROJECT: [Blank]
APPROVED: [Signature]	